

22VECV01063 22VECV01063

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-12

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Case Number: 22VECV01063 Hearing Date: August 12, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PACIFIC BUILDING

CONTRACTORS INC., DBA SERVICE MASTERS BY PBC, A CALIFORNIA CORPORATION,

Plaintiff,

vs.

ROSS MCLEAN, an individual; LOUISA

MCLEAN, an individual; and DOES 1 through 20, inclusive,

Defendants.

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CASE NO.: 22VECV01063

ORDER

GRANTING IN PART PLAINTIFF'S MOTION FOR APPELLATE ATTORNEY FEES

I.

BACKGROUND

This case

arises out of a contract between Plaintiff Pacific Building Contractors Inc., dba Service Masters by PBC ("Plaintiff") against Defendants Ross Mclean and Louisa Mclean (collectively, "Defendants") for failure to pay Plaintiff in full for Plaintiff's construction and repair work on Defendants residence. (See First Amended Complaint ("FAC"), ¶¶ 6-10.)

This Court

held a bench trial on March 13, 2024, and later entered judgment in favor of Plaintiff, awarding Plaintiff \$54,324.16, plus Plaintiff's attorney's fees and

costs.

On March 19,
2026, the Court received the Court of Appeal's remittitur.

Plaintiff now moves for
appellate attorneys' fees of \$29,450.00 following the denial of Defendant's
appeal.

II. PROCEDURAL HISTORY

On July 26, 2022, Plaintiff filed its
Complaint, alleging (1) Breach of Written Contract; (2) Account Stated; (3)
Common Counts; and (4) Quantum Meruit.

On April 14, 2023, Plaintiff filed its
FAC, alleging (1) Breach of Written Contract re Smoke Damage; (2) Breach of
Written Contract re Water Damage; (3) Account Stated; (4) Common Counts; and (5)
Quantum Meruit.

On January 29, 2024, Defendants filed
their Answer.

On May 7, 2024, this Court entered
judgment in favor of Plaintiff after denying Defendants' Motion for a New
Trial.

On July 17, 2024, Defendants filed
their Notice Designating Record on Appeal after filing their Appeal on June 5,
2024.

On September 13,
2024, the Court granted Plaintiff's Motion for Attorney's Fees in the amount of
\$17,735.00 pursuant to Code of Civil Procedure § 1717(a).[1]

On September 17, 2024, the Court
amended the judgment to reflect the attorneys' fees and costs.

On October 30, 2024,
Defendant filed a Notice of Appeal.

On February 26, 2026,
the Court of Appeal affirmed the judgment.

On March 19,
2026, the Court received the Court of Appeal's remittitur.

On April 30,
2026, Plaintiff filed the instant Motion for Award of Appellate Attorney's Fees
Following Remittitur.

On June 8,
2026, Defendants filed an Objection to Motion for Award of Appellate Attorney's
Fees Following Remittitur.

On June 9,
2026, the Court continued the hearing on this Motion after confirming the Remittitur
had not yet been granted and directed that all future briefing should be based
on the new hearing date of August 12, 2026.

On June 10,
2026, the Supreme Court denied Defendants' Petition for Review.

As of August 11,
2026, no opposition has been filed.

III. ANALYSIS

A. Legal Standard

Civil Code
§1717(a) provides, in part:

"In any
action on a contract, where the contract specifically provides that attorney's
fees and costs, which are incurred to enforce that contract, shall be awarded

either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. Where a contract provides for attorney's fees, as set forth above, that provision shall be construed as applying to the entire contract, unless each party was represented by counsel in the negotiation and execution of the contract, and the fact of that representation is specified in the contract. Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit." (Civ. Code § 1717(a).) 2

Attorney fees

are ordinarily determined by the court pursuant to the "lodestar" or "touchstone" method. Under this approach, a base amount is calculated from a compilation of time2reasonably spent2and2reasonable hourly compensation2of each attorney. (See, e.g., *Serrano v. Unruh* (1982) 32 Cal.3d 621, 639.) The base amount is then adjusted in light of various factors. The Supreme Court has not mandated "a blanket 'lodestar only' approach; every fee-shifting statute must be construed on its own merits." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1136.)

Normally, a

"reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) However, the court may consider various other factors when determining a reasonable hourly rate—e.g., the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. (See *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632-33.)

B.

Plaintiff's Fees are Granted in Part.

Plaintiff is entitled to

an award of reasonable appellate attorney's fees and costs under Code of Civil Procedure § 1717(a) as the prevailing party in this action. The Court ruled in favor of Plaintiff after a non-jury trial and entered judgment in Plaintiff's

favor which was amended to award Plaintiff its reasonable costs and attorneys' fees. Plaintiff also defeated Defendants' appeal to the Second Appellate District. Thus, Plaintiff is entitled to appellate attorneys' fees as the prevailing party.

1.

Plaintiff's

Counsel's Requested Rate Is Reasonable.

First, the

Court will address the reasonableness of Plaintiff's counsel's requested hourly rate. "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in [his] court." (Id.)

The Court finds Plaintiff's counsel's hourly rate of \$475.00 reasonable given the prevailing rates in the greater Los Angeles Area for an attorney with 26 years of business litigation experience and considering the level of complexity of the action and the skill demanded by it. (See Declaration of JT Fox filed April 30, 2026 ("Fox Decl."), ¶ 8.)

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2.

Plaintiff's

Counsel's Hours Are Reasonable.

"The

reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Plaintiff

seeks to recover fees for 62 hours billed. This total comprises: (1) 3.0 hours for the review of Defendants' designation of record and preparation of Plaintiff's counter designation of record; (2) 55.0 hours for the review of

Defendants' appeal brief, legal research and drafting of Plaintiff's appellate opposition brief; and (3) 4.0 hours for travelling to and from the appeal hearing which took place on February 24, 2026. (See Fox Decl., ¶ 8, Ex. C.)

This Motion
is unopposed.

The Court has reviewed all of Plaintiff's requested
billing entries and finds them all reasonable.

The Court
finds the lodestar is \$29,450.00 which comprises 62 hours at Plaintiff's
counsel's hourly rate of \$475.00.

3.
Plaintiff's
counsel is not entitled to costs.

Plaintiff is
not entitled to costs as no memorandum of costs was filed.

IV.
CONCLUSION

Based on the
foregoing, the Court GRANTS in part Plaintiff's Motion. The Court awards
Plaintiff's counsel reasonable appellate attorney's fees of \$29,450.00.

IT
IS SO ORDERED

DATED: August 12, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references

are to California codes unless stated otherwise.